

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0001073

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: KIMMA BARRY

and

RESPONDENT: KEITH BARRY

NATURE OF PROCEEDINGS: REVIEW HEARING

RULING

This matter is on calendar for compliance review following an April 30, 2026, hearing regarding the parties' daughter Maggie (DOB: 10/18/2012).

On April 30, 2026, the Court awarded joint legal custody to the parties and sole physical custody to Petitioner/Mother. Mother was ordered, within 30 days, to provide Respondent/Father with documents from Maggie's doctors containing their recommendation that Maggie attend hospital-at-home online schooling, and, by June 26, 2026, an update regarding Maggie's school attendance from January 1, 2026, through the end of the academic semester. The parties were ordered to continue to work in joint therapy with a reunification therapist. Father was ordered to take a parenting class. Finally, the Court ordered that Maggie be seen by a dentist by June 26, 2026.

Mother filed a CPC questionnaire on June 26, 2026, stating that the parties are working on a global settlement. Mother filed a supplemental declaration providing an update on June 30, 2026.

Mother's supplemental declaration states: (1) Maggie has been diagnosed with dysautonomia, a disorder affecting the regulation of her autoimmune nervous system; (2) Maggie is enrolled at California Virtual Academies, an online public school; and (3) during the 2025-26 school year Maggie was enrolled for 180 days, was present for 156 days, and absent 24 days. Mother provided no information relating to dental care.

Mother requests that Maggie remain in Mother's primary physical custody as set forth in this Court's April 30, 2026, Order.

Parties are ordered to appear to address the provisions of the April 30, 2026, Order that have not been addressed in the filings of the parties (e.g., paragraphs 3, 5, 6, and 7).

Counsel for Mother to prepare the Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0001811

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: MARCEL JAMES SHADD

and

RESPONDENT: DIAMOND HARDMOND

NATURE OF PROCEEDINGS: REQUEST FOR ORDER –VISITATION

RULING

This matter is before the Court on Petitioner/Father's November 25, 2025 Request for Order (RFO) to modify visitation regarding the parties' daughter, Milano (DOB:09/04/2023). Father seeks to modify the terms of the Findings and Order After hearing entered on August 19, 2025. The parties were re-referred to Family Court Services (FCS) at the hearing on January 8, 2026. Respondent/Mother's counsel noted that a Domestic Violence Restraining Order (DVRO) in San Joaquin County was issued on December 26, 2025, naming Father as a restrained person and Mother as the protected person. At the DVRO hearing on May 6, 2026, the Court informed the parties that the transfer of the matter from San Joaquin to Marin County was complete, and the Court terminated the December 26, 2025 DVRO, made orders regarding exchanges of Milano, referred the parties to FCS, and continued Father's November 25, 2026 RFO to July 2, 2026.

Both parents were interviewed by FCS and a report was filed on June 22, 2026. Recommendations were made regarding visitation as well as a recommendation to transfer venue to San Joaquin County.

On June 26, 2026, Mother filed a statement of agreement/disagreement to the FCS recommendations stating that she agrees with the FCS recommendations.

On June 26, 2026, Father filed a statement of agreement/disagreement to the FCS recommendations. Father agrees with recommendations #7 and #8, and with the 6:00 p.m. video-call time. Father disagrees with the location exchanges. Father requests that if the matter is being transferred, that it be transferred to Alameda County where he lives, and the courthouse is more accessible to both parties. Father also requests additional time for summer and vacation in a step-up format, make-up calls for missed, unanswered or calls that are ended early, clarification for holiday schedule, and orders around Mother moving without notice to Father.